

Filing # 69748142 E-Filed 03/23/2018 04:14:48 PM

IN THE CIRCUIT COURT OF THE NINTH
JUDICIAL CIRCUIT, IN AND FOR
ORANGE COUNTY, FLORIDA

CASE NO.:

LESTER SPENCER,

Plaintiff,

vs.

ZURICH AMERICAN INSURANCE
COMPANY,

Defendant.

COMPLAINT

The Plaintiff, LESTER SPENCER, sues the Defendant, ZURICH AMERICAN
INSURANCE COMPANY, and alleges:

1. This is an action for damages in excess of Fifteen Thousand Dollars (\$15,000.00), arising in Orange County, Florida.
2. At all times material hereto, Lyft, Inc. was a foreign corporation doing business in the State of Florida with its principal place of business located in San Francisco, California.
3. At all times material hereto, ZURICH AMERICAN INSURANCE COMPANY was a foreign for profit corporation authorized to do business in Florida, with its principal place of business in Schaumburg, Illinois.
4. On or about June 11, 2017, the Plaintiff was a passenger in a motor vehicle at the intersection of N. Orange Blossom Trail and Clarcona Ocoee Rd. in Orange County, Florida.
5. At that time and place, the vehicle Plaintiff was a passenger in was negligently rear-ended by an uninsured motorist, Lentwain Bryan Harley.

6. At the time of the subject crash, the vehicle that Plaintiff was a passenger in was operating as a vehicle for hire under Lyft, Inc.
7. As Lentwain Bryan Harley was uninsured, there was no bodily injury coverage available to fully compensate the Plaintiff for the losses and damages incurred; thereby creating an uninsured motorist claim.
8. At all times material hereto, Lyft, Inc. was insured by the Defendant, ZURICH AMERICAN INSURANCE COMPANY, and on the date of the subject accident, had in full force and effect a policy of automobile insurance providing uninsured motorist coverage, which would inure to the benefit of Plaintiff, LESTER SPENCER, while a passenger in a vehicle operating as a vehicle for hire under Lyft, Inc. at the time of the subject crash.
9. Said policy is in the possession of Defendant, ZURICH AMERICAN INSURANCE COMPANY. A copy of the declaration page of the applicable policy is attached hereto as **Exhibit "A"**.
10. The Plaintiff has met all conditions precedent to maintain this uninsured motorist claim.
11. There is no dispute whether the insurance policy provides the uninsured motorist coverage alleged herein.
12. Defendant, ZURICH AMERICAN INSURANCE COMPANY, has failed to pay Plaintiff's uninsured motorist coverage benefits in violation of the agreement for insurance.
13. Defendant, ZURICH AMERICAN INSURANCE COMPANY, has breached the contract of uninsured motorist coverage to Plaintiff.
14. Alternatively, should the Defendant, ZURICH AMERICAN INSURANCE COMPANY, dispute whether there exists uninsured motorist coverage between the Plaintiff and Defendant, the Plaintiff has been required to retain the services of the undersigned attorneys to represent and protect the Plaintiff's interests and entitlement to said insurance coverage, and the Plaintiff is obligated to pay the attorneys a reasonable fee for their services;

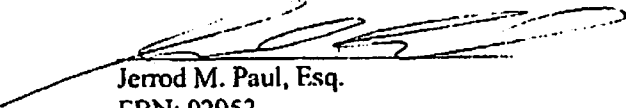
therefore, Plaintiff requests that a reasonable attorney's fee be awarded upon recovery pursuant to Florida Statute 627.428.

15. As a direct and proximate result of the above-mentioned accident, the Plaintiff, LESTER SPENCER, has suffered permanent bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, medical care and treatment, and the aggravation of a previously existing condition, if any. These losses are either permanent or continuing within a reasonable degree of medical probability, and Plaintiff, LESTER SPENCER, will continue to suffer these losses in the future.

16. The Plaintiff further requests prejudgment interest at the legal rate on all amounts incurred for healthcare, doctor and/or nursing expenses, as well as any other economic damages and on any other liquidated expenses incurred as a result of the aforesaid injuries.

WHEREFORE, the Plaintiff, LESTER SPENCER, demands judgment against the Defendant, ZURICH AMERICAN INSURANCE COMPANY, for compensatory damages in excess of Fifteen Thousand Dollars (\$15,000.00) exclusive of costs and interest together with costs and prejudgment interest for that portion of the compensatory damages which have been previously liquidated, and any other relief to which the Plaintiff may be entitled, and the Plaintiff demands a trial by jury of all issues so triable.

Dated this 23rd day of March, 2018.



Jerrod M. Paul, Esq.

FBN: 92953

The Law Offices of Jerrod Paul, P.A.

37 N. Orange Ave. Suite 500

Orlando, FL 32801

Phone: (407) 588-0343

Fax: (855) 862-6872

**COMMON POLICY DECLARATIONS**

Policy Number BAP 4281454-01

Renewal of Number BAP 4281454-00

Named Insured and Mailing Address

Producer and Mailing Address

LYFT, INC.

MARSH RISK & INSURANCE SERVICES

(SEE NAMED INSURED ENDT)

345 CALIFORNIA ST STE 1300

185 BERRY ST

SAN FRANCISCO CA 94104-2652

SUITE 5000

SAN FRANCISCO CA 94107-5705

Producer Code 70003-000

Policy Period: Coverage begins 10-01-2016 at 12:01 A.M.; Coverage ends 10-01-2017 at 12:01 A.M.

The name insured is ☐ Individual☐ Partnership☒ Corporation☐ Other:

This insurance is provided by one or more of the stock insurance companies which are members of the Zurich-American Insurance Group. The company that provides coverage is designated on each Coverage Part Common Declarations. The company or companies providing this insurance may be referred to in this policy as "The Company", we, us, or our. The address of the companies of the Zurich-American Insurance Group are provided on the next page.

THIS POLICY CONSISTS OF THE FOLLOWING COVERAGE(S):**BUSINESS AUTOMOBILE**

issued by ZURICH AMERICAN INSURANCE COMPANY

THIS PREMIUM MAY BE SUBJECT TO AUDIT.**TOTAL**

This premium does not include Taxes and Surcharges.

SEE INSTALLMENT SCHEDULE**Taxes and Surcharges****TOTAL**Form(s) and Endorsement(s) made a part of this policy at time of issue are listed on the **SCHEDULE of FORMS and ENDORSEMENTS.**

Countersigned this day of

Authorized Representative

THIS DECLARATION TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE PART DECLARATIONS, COVERAGE PART FORM(S), FORMS AND ENDORSEMENTS, IF ANY, ISSUED TO FORM A PART THEREOF, COMPLETE THE ABOVE NUMBERED POLICY.



ZURICH

Important Notice – In Witness Clause

in return for the payment of premium, and subject to the terms of this policy, coverage is provided as stated in this policy.

IN WITNESS WHEREOF, this Company has executed and attested these presents and, where required by law, has caused this policy to be countersigned by its duly Authorized Representative(s).

Nancy D. Mueller

President

Dan T. K...f

Corporate Secretary

QUESTIONS ABOUT YOUR INSURANCE? Your agent or broker is best equipped to provide information about your insurance. Should you require additional information or assistance in resolving a complaint, call or write to the following (please have your policy or claim number ready):

Zurich in North America
Customer Inquiry Center
1299 Zurich Way
Schaumburg, Illinois 60196-1056
1-800-382-2150 (Business Hours: 8am - 4pm [CT])
Email: info.source@zurichna.com

POLICY NUMBER: BAP 4281454-01

COMMERCIAL AUTO

ZURICH AMERICAN INSURANCE COMPANY

1299 Zurich Way
 Schaumburg, Illinois 60196-1056
 1-800-382-2150

BUSINESS AUTO DECLARATIONS

ITEM ONE

PRODUCER:
 MARSH RISK & INSURANCE SERVICES

NAMED INSURED: LYFT, INC.
 (SEE NAMED INSURED ENDORSEMENT)

MAILING ADDRESS: 185 BERRY ST
 SUITE 5000
 SAN FRANCISCO, CA 94107-5705

POLICY PERIOD: From 10-01-2015 to 10-01-2017 at 12:01 A.M. Standard Time at your
 mailing address shown above

PREVIOUS POLICY NUMBER: BAP 4281454-00

FORM OF BUSINESS:

☒ CORPORATION☐ LIMITED LIABILITY COMPANY☐ INDIVIDUAL☐ PARTNERSHIP☐ OTHER

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY,
 WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

Premium shown is payable at Inception: ■■■■■■■■■■						
AUDIT PERIOD (IF APPLICABLE)	X	ANNUALLY	SEMI-ANNUALLY	QUARTERLY	MONTHLY	

ENDORSEMENTS ATTACHED TO THIS POLICY:

IL 00 17 - Common Policy Conditions (IL 01 46 in Washington)

IL 00 21 - Broad Form Nuclear Exclusion (not Applicable in New York) (IL 01 98 in Washington)

SEE SCHEDULE OF FORMS AND ENDORSEMENTS

COUNTERSIGNED

(Date)

BY

(Authorized Representative)

ITEM TWO**Schedule Of Coverages And Covered Autos**

This policy provides only those coverages where a charge is shown in the premium column below. Each of these coverages will apply only to those "autos" shown as covered "autos". "Autos" are shown as covered "autos" for a particular coverage by the entry of one or more of the symbols from the Covered Autos section of the Business Auto Coverage Form next to the name of the coverage.

COVERAGES	COVERED AUTOS	LIMIT	PREMIUM
COVERED AUTOS LIABILITY	10	\$ 1,000,000	INCL
PERSONAL INJURY PROTECTION (or equivalent; No-fault Coverage)	10	SEPARATELY STATED IN EACH P.I.P. ENDORSEMENT MINUS DEDUCTIBLE.	INCL
ADDED PERSONAL INJURY PROTECTION (or equivalent; Added No-fault Coverage)		SEPARATELY STATED IN EACH ADDED P.I.P. ENDORSEMENT.	
PROPERTY PROTECTION INSURANCE (Michigan only)		SEPARATELY STATED IN THE PROPERTY PROTECTION INSURANCE ENDORSEMENT MINUS DEDUCTIBLE FOR EACH ACCIDENT.	
AUTO MEDICAL PAYMENTS		N/A EACH INSURED	
MEDICAL EXPENSE AND INCOME LOSS BENEFITS (Virginia only)		SEPARATELY STATED IN THE MEDICAL EXPENSE AND INCOME LOSS BENEFITS ENDORSEMENT.	
UNINSURED MOTORISTS	10	SEE ENDT	INCL
UNDERINSURED MOTORISTS (When not included in Uninsured Motorists Coverage)	10	SEE ENDT	INCL
PHYSICAL DAMAGE COMPREHENSIVE COVERAGE		ACTUAL CASH VALUE OR COST OF REPAIR, WHICHEVER IS LESS, MINUS DEDUCTIBLE FOR EACH COVERED AUTO, BUT NO DEDUCTIBLE APPLIES TO LOSS CAUSED BY FIRE OR LIGHTNING. See ITEM FOUR For Hired or Borrowed Autos.	
PHYSICAL DAMAGE SPECIFIED CAUSES OF LOSS COVERAGE		ACTUAL CASH VALUE OR COST OF REPAIR, WHICHEVER IS LESS, MINUS DEDUCTIBLE FOR EACH COVERED AUTO FOR LOSS CAUSED BY MISCHIEF OR VANDALISM. See ITEM FOUR For Hired Or Borrowed Autos.	
PHYSICAL DAMAGE COLLISION COVERAGE		ACTUAL CASH VALUE OR COST OF REPAIR, WHICHEVER IS LESS, MINUS DEDUCTIBLE, FOR EACH COVERED AUTO. See ITEM FOUR For Hired Or Borrowed Autos.	
PHYSICAL DAMAGE TOWING AND LABOR		N/A FOR EACH DISABLEMENT OF A PRIVATE PASSENGER AUTO.	
TAX / SURCHARGE / FEE			
PREMIUM FOR ENDORSEMENTS			
*ESTIMATED TOTAL PREMIUM			

*This policy may be subject to final audit.



— THE LAW OFFICES OF —
JERROD PAUL, P.A.

Jerrod M. Paul, Esq.
jerrod@jerrodpaul.com
Christina E. Bisset, Esq.
christina@jerrodpaul.com

37 N. Orange Ave., Suite 500
Orlando, FL 32801

Phone: (407) 588-0343
Fax: (855) 862-6872
JerrodPaul.com

March 29, 2018

VIA CERTIFIED MAIL
Department of Financial Services
200 East Gaines Street
Tallahassee, FL 32399

To whom it may concern:

Enclosed please find a copy of the Complaint and Summons to be served on Zurich American Insurance Company. The check for payment of the \$15.00 service fee has been included with this correspondence, along with a self-addressed stamped envelope for return of service. Thank you for your attention to this matter.

Sincerely,

Christina E. Bisset